

25CV06961 Mechanics Bank v. California Organic Fertilizers, Inc., et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-03

Motion: Motion of Plaintiff Mechanics Bank for Summary Judgment or Alternatively for Summary Adjudication

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Case Number

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Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 06/03/2026 - 10:00

Nature of Proceedings

Motion of Plaintiff Mechanics Bank for Summary Judgment or Alternatively for Summary Adjudication

Tentative Ruling

For Plaintiff Mechanics Bank: Tom R. Normandin, Prenovost, Normandin, Dawe & Rocha

For Defendant California Organic Fertilizers, Inc., and Timothy Stemwedel: Daren A. Stemwedel

RULING

Unless counsel appears at the hearing of this motion and provides good cause otherwise, this matter is transferred to the Cook Division of this Court (Santa Maria) and the motion for summary judgment or for summary adjudication will be reset for hearing following transfer.

Discussion

"For the purpose of these local rules, it shall be assumed that Santa Barbara County has been divided geographically into two separate regions hereinafter referred to as 'South County' and 'North County.' " (Santa Barbara County Superior Court Local Rules, rule 201.)

"[General Rule] When, under California law, 'North County' would be a 'proper county' for venue purposes, all filings for such matters shall be in the appropriate division of the Clerk's office in North County. All other filings shall be made in the Clerk's office in the appropriate division of the Court in South County." (Santa Barbara County Superior Court Local Rules, rule 203(a).)

"[Designation and Change of Venue] In electronic filings, the party making the filing shall designate the appropriate division of the Court based upon subdivisions (a) and (b) of this rule. The title of the Court required to be placed on the first page of documents pursuant to CRC 2.111 includes the name of the appropriate Court division. Any filing erroneously made in a division of the Court may be transferred to the appropriate division upon motion of any party or on the court's own motion." (Santa Barbara County Superior Court Local Rules, rule 203(c).)

"Subject to subdivision (b) [which is not applicable here], if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary." (Code Civ. Proc., § 395, subd. (a).)

Plaintiff Mechanic Bank's complaint asserts liability based upon promissory notes, commercial guaranties, security agreements, and business loan agreements. Each of these agreements on their face were entered into, and to be performed, in Santa Maria in North County. (Merrifield-Olivia decl., exhibits 1 at p. 7, 2 at p. 11, 3 at p. 16, 4 at p. 23, 5 at p. 31, 6 at p. 35, 7 at p. 40, 8 at p. 47.) No defendant is shown to be a resident in South County. Consequently, venue for this action is properly in North County.

The court notes that plaintiff failed to file the Civil Case Cover Sheet Addendum required by Santa Barbara County Superior Court Local Rules, rule 1310, which would have identified the venue issue earlier. To the extent counsel appears to argue venue should remain in South County, counsel will need to explain the failure to file the required addendum.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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